

# Medicare Hospice Regulations

Compliance Reference Guide - 42 CFR Part 418

## FEDERAL ELIGIBILITY REQUIREMENTS

Under 42 CFR 418.24, patients must meet these four core requirements for Medicare hospice coverage:

### 1 Medicare Part A Enrollment

Patient must be enrolled in Medicare Part A (Hospital Insurance)

### 2 Physician Certification

Attending physician and hospice medical director must certify terminal illness

### 3 Prognosis Requirement

Life expectancy of 6 months or less if disease runs its normal course

### 4 Written Election

Patient or representative must sign election statement choosing hospice

## DISEASE-SPECIFIC CLINICAL GUIDELINES

### Cancer (LCD L33393)

- Metastatic disease or locally advanced with poor prognosis
- Declining functional status (Palliative Performance Scale < 70%)
- Patient declines or is no longer benefiting from curative treatment

### Heart Disease (NYHA Class IV)

- Symptoms at rest despite optimal medical management
- Ejection fraction < 20% or 3+ hospitalizations in past 12 months
- Persistent hypotension, renal insufficiency, or cardiac cachexia

### Pulmonary Disease (End-Stage COPD)

- Disabling dyspnea at rest or with minimal exertion
- FEV1 < 30% predicted after bronchodilator therapy
- Progressive weight loss, right heart failure, or cor pulmonale

### Dementia (FAST Stage 7+)

- Unable to ambulate, dress, or bathe independently

- Limited speech (fewer than 6 intelligible words per day)
- Recent aspiration pneumonia, UTI, sepsis, or stage 3+ pressure ulcers

## ALIGNING COMPLIANCE TO THE SALES MASTERY MODEL

1

### DISCOVERY

Identify eligible patients during care planning meetings

2

### CONNECTING

Conduct goals-of-care conversation with patient and family

3

### GUIDING

Educate on hospice benefits and address concerns

4

### COMMITMENT

Obtain physician certification and patient election

#### COMPLIANCE TIP

Document all hospice conversations in the medical record. Include patient/family responses and any barriers discussed. This protects the facility and supports continuity of care.